This colonial classification was subsequently taken forward by subaltern studies, which emanates from postcolonial thought since postcolonialism views indigenous history through Eurocentric lens and assumes that the ‘majority national community’ exhibited the same behavioural pattern as that of the European coloniser.[25] Further, as opposed to recognising the right of former colonies to craft their own definitions of indigenous peoples and what constitutes indigeneity, the internationalisation of the issue through international legal instruments effectively allows the West to interfere with the social dynamics and history of former colonies, thereby diluting their sovereignty as well as their agency over their cultural experience. This proves my earlier point on international law being an instrumentality of coloniality. Further, the focus of both ILO definitions is on ‘identity’ as opposed to ‘consciousness’, wherein the former focusses on who are ‘indigenous peoples’ as opposed to also asking what constitutes or makes up ‘indigeneity’.

In this regard, the other important legal literature that merits examination is the ‘Study on the Problem of Discrimination against Indigenous Populations’ commissioned by the United Nations in 1972. The Study was authored by the Special Rapporteur of the Sub-Commission on Prevention of Discrimination and Protection of Minorities, Jose R. Martinez Cobo,[26] and came to be known as the Martinez Cobo Study. This exercise, which was completed in 1987, is considered one of the most comprehensive works on the subject. A working definition of who and what constitutes ‘indigenous’ was provided in it, which is as follows:

> Indigenous communities, peoples and nations are those which, having a *historical continuity with pre-invasion and pre-colonial societies* that developed on their territories, consider themselves distinct from other sectors of the societies now prevailing on those territories, or parts of them. They form at present *non-dominant sectors* of society and are determined to preserve, develop and transmit to future generations their ancestral territories, and their ethnic identity, as the basis of their continued existence as peoples, in accordance with their own cultural patterns, social institutions and legal system.
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> This historical continuity may consist of the continuation, for an extended period reaching into the present of one or more of the following factors: